



KIOWA TRIBE

P.O. Box 369 • Carnegie, Oklahoma • 73015
Phone: (580) 654-6338 • Fax: (580) 654-1788
OFFICE OF THE LEGISLATURE

KIOWA TRIBE RESOLUTION NO. KL-CY-2025-028 **KIOWA TRIBE FALSE CLAIMS ACT**

At a duly called Session of the Legislature of the Kiowa Tribe held this 8th day of November 2025, the following Resolution and Law were adopted.

WHEREAS; the Legislature is vested with the authority to pass laws and resolutions pursuant to Article VI, Section 6(a) of the Constitution of the Kiowa Tribe; and,

WHEREAS; the Legislature has enacted the "False Claims Act," which is designed to govern and regulate all funds and property belonging to the Kiowa Tribe. This legislation aims to ensure transparency and accountability in financial dealings; and,

WHEREAS; the Legislature has enacted the "False Claims Act" to safeguard the Kiowa Tribe's resources. This legislation ensures that no individual, including appointed, elected officials, and others, can unlawfully appropriate funds or property from the Tribe; and,

NOW THEREFORE IT BE IT RESOLVED; that the Legislature hereby enacts the attached law entitled, "Kiowa Tribe False Claims Act".

C E R T I F I C A T I O N

The foregoing Resolution KL-CY-2025-028 was duly voted upon by the Legislature on November 08, 2025, at a Legislative Regular Session CIII-(103), with a vote of (4) in favor and (0) opposed, (0) abstaining, and (3) absent, according to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.



Michael Primus
Speaker of the Legislature



LEGISLATIVE RESOLUTION – KL-CY-2025-028**Sponsors:** Cole DeLaune, District 4**Co-Sponsors:** Kyle Ataddlety, District 1; Michael Primus, District 2; Timothy Satepauhoodle, District 3; Cole DeLaune, District 4; Tiya Rosario, District 5; Ben Wolf, District 6; Warren Queton, District 7.

LEGISLATORS	YES Hàu	NO Hàu:né	ABSTAIN Háun á	ABSENT Héñgyádàu
Kyle Ataddlety District 1	X			
Michael Primus District 2	X			
Timothy Satepauhoodle District 3				X
Cole DeLaune District 4	X			
Tiya Rosario District 5				X
Ben Wolf District 6	X			
Warren Queton District 7				X

DELIVERY OF THE RESOLUTION AND LAW TO THE CHAIRMAN

Resolution No. KL-CY-2025-028 was presented to the Chairman of the Kiowa Tribe on the 17th day of November, 2025, pursuant to the Article VI, Section 8(a)(iv) of the Constitution of the Kiowa Tribe, and will become effective after signature by the Chairman or veto override by the Legislature, and as otherwise required by the Constitution.



Michael Primus
Speaker of the Legislature

CHAIRMAN'S ACTION:

☐ APPROVED

☒ VETO - RETURNED TO LEGISLATURE WITH EXPLANATION:

See Attached

On this 21st day of November, 2025.



Lawrence Spottedbird
Chairman of the Kiowa Tribe

Presented by the Chairman to the Legislature on the ____ day of _____, 2025.

LEGISLATURE'S ACTION:

Override of Chairman's veto:

☐ YES

☐ NO

LEGISLATIVE OVERRIDE ORDER: KLO-CY-2025-0XX

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1				
Michael Primus District 2				
Timothy Satepauhoodle District 3				
Cole DeLaune District 4				
Tiya Rosario District 5				
Ben Wolf District 6				
Warren Queton District 7				

C E R T I F I C A T I O N

The foregoing Legislative Order, KLO-CY-2025-00X was duly voted upon by the Legislature on _____, 2025, at a Legislative Override Order Session with a vote of _____ in favor and _____ opposed, and _____ abstaining, _____ Absent. Pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

Section 101. Title. This Act shall be known as the False Claims Act (“Act”).

Section 102. Purpose. This Act is passed to ensure that no person takes money or property improperly from the Kiowa Tribe (“Tribe”). In the past, appointed and elected officials, and others, took money and property from the Tribe without the authority of law. This Act is passed to create a significant disincentive to any future taking of money and property and a mechanism to recover the money and property improperly taken.

Section 103. Definitions. The following are defined terms that shall apply to this Act and any application or interpretation of it:

- (a) the terms “knowing” and “knowingly”—
 - (1) means that a person, with respect to information:
 - (A) has actual knowledge of the information;
 - (B) acts in deliberate ignorance of the truth or falsity of the information; or
 - (C) acts in reckless disregard of the truth or falsity of the information; and
 - (2) requires no proof of specific intent to defraud.
- (b) the term “claim”—
 - (1) means any request or demand, whether under a contract or otherwise, for money or property and whether or not the Tribe has title to the money or property, that:
 - (A) is presented to an officer, employee, or agent of the Tribe or any business that it owns; or
 - (B) is made to a contractor, grantee, or other recipient, if the money or property is to be spent or used on the Tribe’s behalf or to advance a Tribe business, program or interest, and if the Tribe:
 - (i) provides or has provided any portion of the money or property requested or demanded; or
 - (ii) will reimburse such contractor, grantee, or other recipient for any portion of the money or property which is requested or demanded; and
 - (2) does not include requests or demands for money or property that the Tribe has paid to an individual as compensation for employment or as an income subsidy with no restrictions on that individual’s use of the money or property.
- (c) the term “material” means having a natural tendency to influence, or be capable of influencing, the payment or receipt of money or property.

- (d) the term “obligation” means an established duty, whether or not fixed, arising from an express or implied contractual, grantor-grantee, or licensor-licensee relationship, from a fee-based or similar relationship, from statute or regulation, or from the retention of any overpayment.
- (e) the term “Relator” shall mean the person filing a claim under this Act.

Section 104. Exclusions and Limitations.

- (a) The provisions of this Act shall not apply to the Chairman of the Tribe, the Vice-Chairman of the Tribe, the Legislators of the Tribe, the Judges of the Trial Court, or the Justices of the Supreme Court. Said persons shall neither be a defendant nor a relator in any action under this law, during their terms of office. No statute of limitations on any claim against any elected enumerated in this section shall be begin to run until the day that person leaves office.
- (b) The Statute of Limitations applicable to the prosecution of claims under the Act shall be six (6) years from the date of the claim.

Section 105. Cause of Action. Any person who:

- (a) knowingly presents, or causes to be presented, a false or fraudulent claim for payment or approval; or
- (b) knowingly makes, uses, or causes to be made or used, a false record or statement that is material to a false or fraudulent claim; or
- (c) has possession, custody, or control of property or money used, or to be used, by the Tribe and knowingly delivers, or causes to be delivered, less than all of that money or property; or
- (d) is authorized to make or deliver a document certifying receipt of property used, or to be used, by the Tribe and, intending to defraud the Tribe, makes or delivers the receipt without completely knowing that the information on the receipt is true; or
- (e) knowingly buys, or receives as a pledge of an obligation or debt, public property from an officer or employee of the Tribe who lawfully may not sell or pledge property; or
- (f) knowingly makes, uses, or causes to be made or used, a false record or statement material to an obligation to pay or transmit money or property to the Tribe, or knowingly conceals or knowingly and improperly avoids or decreases an obligation to pay or transmit money or property to the Tribe; or
- (g) conspires to commit a violation of subparagraph (A), (B), (C), (D), (E), or (F), is liable to the Tribe for a civil penalty of not less than \$5,000 and not more than \$10,000 for each false or fraudulent claim, plus the actual damages which the Tribe sustains because of the act of that person, plus a multiplier of not less than three (3) times and not more than ten (10) times actual damages as the Court may determine is appropriate based on the facts and circumstances of each case.

Section 106. Procedure. The following shall be the procedure applicable to any claim or cause of action to enforce the provisions of this Act:

- (a) Any person may bring a claim or cause of action under this Act as a Relator. The relator shall bring the claim in the name of the Tribe or the relevant entity owned or controlled by the Tribe.
- (b) Any claim or cause of action brought under this Act shall be brought in the Trial Court of the Tribe.
- (c) The Complaint filed in an action under this Act shall be filed under seal pursuant to the procedures of the Trial Court. The Case shall be recorded in the official Court records by the Court Clerk, but the existence of the case shall remain a secret and shall not be published until the case is unsealed. The Clerk of the Trial Court shall immediately transmit one copy of the sealed complaint to the Tribal Prosecutor.
- (d) There shall be no filing fee for a Complaint under this Act.
- (e) On day sixty-one (61) after filing, the complaint shall be unsealed and filed in the open court records, unless the Prosecutor informs the Court Clerk of pending investigations before the time for unsealing. In which case, the matter shall remain secret and the Complaint sealed for up to sixty (60) additional days. In no event shall the matter remain secret or the Complaint sealed for more than one hundred twenty (120) days.
- (f) Upon receipt of the Complaint, the Tribal Prosecutor shall investigate the matters alleged. The Tribal Prosecutor may, at any time while the matter remains sealed, elect to prosecute the matter on behalf of the Tribe. If the Tribal Prosecutor does not elect to prosecute the matter, the Relator may prosecute or dismiss the matter.
- (g) If the prosecution of the matter results in an award of damages, the Relator shall be entitled to 1/3 of the damages awarded, inclusive of both civil penalties and actual damages, whether or not the Prosecutor prosecutes the matter.
- (h) If the prosecution of the matter results in an award of damages, the Relator or the Tribe shall be entitled the costs of the action and attorney fees at a reasonable rate as the Court may determine.
- (i) The current rules of civil procedure, evidence and appellate procedure adopted by the Tribe shall apply in any pretrial, trial or appeal of an action under this Act.
- (j) No lawyer who serves the Kiowa Tribe in any capacity may serve as either a Relator nor as legal counsel for any individual person in any proceeding under this law.
- (k) Every Relator shall be represented by counsel and may not prosecute an action in a *pro se* capacity.

FALSE CLAIMS ACT

VETO RECOMMENDATION

1. The proposed False Claims Act is based upon allegations of fraud. Oklahoma and Federal law are both clear that any action under fraud requires a specific intent to defraud. Section 103 (a)
2. A six year statute of limitation for any action based upon fraud is far in excess of any tort under both state and federal law. Section 104 (b)
3. The Tribal Prosecutor has complete and absolute prosecutorial discretion in whether or not to prosecute a criminal or civil charge brought before the Court. If in his sound discretion the matter has no merit, his decision and that of the Court should not be questioned or bypassed by a Relator and his attorney. Section 106 (f)
4. The fines are excessive and punitive in nature and violate both state and federal law with the multiplier as stated in the Act. Section 106 (g)
5. The 33% "finder's fee" and award of costs of the action and attorney fees. Section 106 (h).

Case law in support of this veto are numerous and very clear. This Act would not survive a judicial review under existing and applicable case law under State or Federal law, which the Kiowa Court and its Codes (and by adoptive reference , the Federal Appellate Courts and Oklahoma State Courts have adopted. Section 106 (i)

Notable References, among several:

Henry v. Collier, 169 P. 636, 1917 OK 582

Silk v. Phillips Petroleum Co., 760 P.2d 174, 1988 OK 93 (Okla. 1988)

Oasis Int'l Waters, Inc. v. United States, No. 10-707C (Fed. Cl. Apr 07, 2017)

LW Constr. Of Charleston, LLC v. United States, No. 14-960C (Fed. Cl. Jul 31, 2018)

Gay v. Akin, 766 P.2d 985, 1988 OK 150 (Okla.1988)



Lawrence SpottedBird, Chairman



KIOWA TRIBE

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OFFICE OF THE LEGISLATURE

MEMORANDUM

To: Lawrence Spottedbird, Chairman of the Kiowa Tribe

From: Michael Primus, Speaker of the Legislature *MP*

Date: Monday, November 17, 2025

Subject: Delivery to the Chairman's Office – (1) Resolution: "KL-CY-2025-028 The False Claims Act."

Delivery of Law

The Kiowa Tribe Legislature held Regular Session CIII-(103), on Saturday, November 08, 2025. In accordance with the Kiowa Tribe Constitution, Article VI-Legislature, Section 7. Session, (a). The Legislative Speaker, Michael Primus, is hereby delivering approved resolutions to the Chairman's Office, in accordance with Article VII – Executive Branch, Section 4., (f).

- a. Resolution KL-CY-2025-028 2025 The False Claims Act. Sponsor-Cole DeLaune, District 4.

Should you have any other questions, please feel free to contact Tracy Harris, Legislative Administrator at (580) 919-0305.

Received by: *Randal D. Homburg* Date 11/17/25
Signature

Print Signature: Randal D. Homburg Date 11/17/25



Kiowa Tribe

P.O. Box 369 · Carnegie, Oklahoma · 73015

Phone: (405) 247-0574

EXECUTIVE BRANCH

MEMORANDUM

TO: Michael Primus, Speaker of the Kiowa Tribe Legislature

FROM: Lawrence SpottedBird, Chairman of the Kiowa Tribe

DATE: October 25, 2025

SUBJECT: DELIVERY TO THE LEGISLATURE – Legislative Administrator, Tracy Harris
**KL-CY-2025-028 – KIOWA TRIBE RESOLUTION -
KIOWA TRIBE FALSE CLAIMS ACT**

Should you have any other questions, please feel free to contact Suzanne Wise,
Executive Assistant at (405) 247-0574.

Received by: 27 Howard Date: 11/25/2025

Print Signature: Tracy Harris Date: 11/25/2025



KIOWA TRIBE

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OFFICE OF THE LEGISLATURE

KIOWA TRIBE LEGISLATIVE ORDER KLO-CY-2025-040

SUBJECT: To Override A Veto Issued by the Chairman of a Resolution/Bill KL-CY-2025-028 Kiowa Tribe False Claims Act.

WHEREAS, Article VI, Section 6(c) and (d) of the Tribe's Constitution grants the Legislature the authority to override a Chairman's veto of a Bill or budget by passing a Legislative Order; and,

WHEREAS, On November 08, 2025, the Legislature passed a Bill entitled, "Kiowa Tribe False Claims Act." (Resolution KL-CY-2025-028); and,

WHEREAS, On November 21st, 2025, the Chairman of the Tribe vetoed Resolution KL-CY-2025-028 citing, "reasons for veto by Chairman (see attached statement)"; and,

NOW THEREFORE IT BE RESOLVED, that the Legislature hereby overrides the Chairman's veto of Resolution KL-CY-2025-028 Kiowa Tribe False Claims Act.

CERTIFICATION

The foregoing Legislative Override Order KLO-CY-2025-040 was duly voted and approved upon by the Legislature on December 05, 2025, at a Legislative Order Session XX-(20) with a vote of (6) in favor and (0) opposed, (0) abstaining, and (1) absent, pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

LEGISLATIVE OVERRIDE ORDER - KLO-CY-2025-040

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1	X			
Michael Primus District 2	X			
Timothy Satepauhoodle District 3	X			
Cole DeLaune District 4	X			
Tiya Rosario District 5				X
Ben Wolf District 6	X			
Warren Queton District 7	X			

Memorandum

To: Kiowa Legislature
From: Jason Aamodt
Re: Veto of the False Claims Act
Date: Tuesday, December 9, 2025

This memorandum is written concerning the Chairman's recent veto of the Kiowa False Claims Act. The Chairman's Memorandum does not appear to be informed by relevant law, nor does it appear to have any relation to the Kiowa False Claims Act, the Federal False Claims Act or any state false claims act.

- 1) The first objection is that "The proposed False Claims Act is based on allegations of fraud. Oklahoma and Federal law are both clear that any action under fraud requires specific intent to defraud. Section 103(a)."

Response: This assertion completely misses the mark:

- A) While fraud may require certain things under federal or state law, Kiowa law does not and the Legislature is free to create statutory causes of action. Every legislature in the world has done so.
- B) Both Oklahoma and the federal government have a false claims act that is very similar to the Kiowa False Claims Act. Those laws have been on the books since the 1800s and have been upheld as appropriate and constitutional.
- C) A false claims act is useful for the reason stated as an objection: a common law fraud claim has such unique features that having a statutory framework makes rooting out corruption from government more effective.

- 2) The second objection is that, "A six year statute of limitation for any action based on fraud is far in excess of any tort under both state a federal law. Section 104(b)"

Response: This assertion again misses any relevant mark:

- A) A claim under the false claims act is its own claim and is not a fraud claim.
- B) A claim under the false claims act is not a tort, so no tort statute of limitations would apply.
- C) A legislature is always free to make any statute of limitations as short or long as it likes.
- D) The "general" federal statute of limitations is 6 years – identical to what the Kiowa Legislature chose.
- E) Both Oklahoma and federal law have statutes of limitation that are longer, even up to 21 years.

- 3) The third objection is that, "The tribal prosecutor has complete and absolute prosecutorial discretion in whether or not to prosecute a criminal or civil charge before the court. If in his sound discretion the matter has no merit, his decision and that of the Court should not be questioned or bypassed by a relator and his attorney. Section 106 (f)"

Response: This assertion again misses any relevant mark:

- A) The provision gives the prosecutor discretion on whether or not to proceed. The only limit is that he must make a decision in 120 days.
 - B) This provision mirrors the same provision in the federal False Claims Act. Most State false claims acts also have the same provisions. The reason for this is when a relator alleges wrong doing they do not have the investigative powers of the prosecutor. As a result, they may not be alleging all the correct things. This provision keeps the suit a secret, and allows the prosecutor time to investigate and to decide whether he wants to take the claim himself, or if he wants to expand it. Lots of times the Prosecutor doesn't take the case because he feels that the private attorney can handle it, allowing the case to proceed while the prosecutor goes on to take on other matters. Such a decision is not one on the merits of the case, but about management of staff and attorney time.
- 4) The fourth objection is that, "the fines are excessive and punitive in nature and violate both statute and federal law with the multiplier as stated in the Act. Section 106 (g)

Response: This assertion is not based on relevant law:

- A) The Federal False Claims Act imposes a standard 3x multiplier and its fines are much higher than the Kiowa False Claims Act. Many Federal False Claims result in 10x multipliers when you add together the fines and the 3x multiplier.
 - B) Courts have held that these kinds of multipliers are not excessive.
 - C) The Kiowa False Claims Act allows the Judge, in her discretion, to apply the multiplier based on the facts and circumstances of the case.
- 5) The fifth objection is that, "The 33% "finders fee" and award of costs and attorneys fee. Section 106 (h)"

Response: This assertion is not complete.

If the assertion is that award of 1/3 of the recovery to the Relator or that the award of costs or attorneys fees is wrong, then this assertion would be incorrect. The federal and all state false claims acts contain these same provisions, which have been held by courts to be enforceable and appropriate.

The memo lists cases that we might infer as supportive of the positions in the memo, though no effort was taken to link the cases to any particular proposition. Nonetheless, I've taken the time to review the cited cases, and none are relevant:

Henry v. Collier, 169 P. 636 (1917) is a 108 year old case about what were once (but are no longer) the common law elements of fraud in Oklahoma. This case is irrelevant. It seems to be cited based on the mistaken proposition that the false claims act relies on fraud.

Silk v. Phillips Petroleum Co., 760 P.2d 174 (1988) is a more recent fraud case relating to a claim that an oil and gas lease was fraudulently obtained. This case is irrelevant. It seems to be cited based on the mistaken proposition that the false claims act relies on fraud.

Oasis Int'l Waters, Inc. v. United States, No. 10-707C (Fed. Cl. Apr. 7, 1988). Oasis was a bottled water company that provided bottled water to the Iraq war effort. The claimed breach of contract, and the United State counterclaimed fraud. This case is irrelevant. It seems to be cited based on the mistaken proposition that the false claims act relies on fraud.

LW Construction of Charleston, LLC v. United States, No. 14-960C (Fed. Cl. Jul. 31, 2018). The court affirmed the government's decision to find LW Construction ineligible for the VA's Veterans First Contracting Program. The ruling was based on the court finding that the company's operating agreement required the consent of all members for major decisions, which meant the service-disabled veteran did not have the ultimate control needed to meet the program's requirements. This case is irrelevant. I can't figure out why it might have been cited it is so irrelevant.

Gay v. Akin, 766 P.2d 985 (Okla. 1988) is an Oklahoma case that outlines what a plaintiff must state in his complaint to allege fraud under Oklahoma law. This case is irrelevant. It seems to be cited based on the mistaken proposition that the false claims act relies on fraud.